

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X
TREVOR CARPENTER,

Plaintiff

- against -

**THE CITY OF NEW YORK,
DETECTIVE ANTHONY VELEZ
(SHIELD #005584)**

Defendant.

-----X

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 15, 2018



MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

DETECTIVE ANTHONY VELEZ (SHEILD # 005584)

41st PRECINCT

1035 Longwood Avenue

Bronx, NY 10459

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
TREVOR CARPENTER

Plaintiff,

Index No.

Verified Complaint

- against -

**THE CITY OF NEW YORK,
DETECTIVE ANTHONY VELEZ
(SHIELD #005584)**

Defendant.

=====X

Plaintiff TREVOR CARPENTER, by his attorneys MARTINDALE &
ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of
the Defendant, respectfully shows to this Court and alleges the following upon
information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK ("CITY"),
was and still is a municipal corporation organized and existing under and by
virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department ("NYPD") officers
mentioned herein, including Defendant Detective Anthony Velez ("VELEZ"),
were, at the time of the occurrence, police officers of Defendant CITY, and at all

times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff Trevor Carpenter is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 7:30pm on October 2, 2016, in and around 973 Reverend James Polite Avenue, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.
9. On the evening of October 2, 2016, Plaintiff received a phone call from friend Saad Wyche informing him that his nephew's friend had been shot.
10. Fearing that his nephew might be in trouble, Plaintiff hailed a cab and headed towards Reverend James Polite Avenue in Bronx County.
11. Upon arriving to the area, Plaintiff met with his girlfriend, Kimberly, in front of 973 Reverend James Polite Avenue and proceeded to go upstairs to Apartment #3C, passing police tape and several police officers on the way into the building.
12. Plaintiff arrived at Apartment #3C where police officers arrived a couple of minutes later and began questioning Plaintiff.
13. There, NYPD officers, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully handcuffed and arrested the Plaintiff.
14. The officers arrested Plaintiff intentionally, and Plaintiff at all times was aware he was being arrested and did not consent to being arrested.
15. After arresting and handcuffing Plaintiff, officers escorted him out of the apartment in view of his girlfriend and multiple bystanders.
16. As Plaintiff was being escorted to the police vehicle, Mr. Wyche informed the police they were mistaken in arresting Plaintiff, as Mr. Wyche had just called Plaintiff to the area.

17. After being removed from the apartment building, Plaintiff was taken to the 41st Precinct and interrogated.
18. Approximately twenty four hours after he was arrested, Plaintiff was brought before a judge and remanded at arraignments; having been charged with Attempted Murder and other underlying felonies
19. After arraignment, Plaintiff was transported to Vernon C. Bain Correctional Center, where he remained until his release on October 7, 2016.
20. Plaintiff fought the above referenced charges until the case was ultimately dismissed on February 28, 2017.
21. While incarcerated Plaintiff missed out on approximately \$2,000.00 in wages.
22. Plaintiff's name was placed in The Daily News on October 13, 2016 as an attempted murder suspect.
23. While incarcerated, City was in possession of exculpatory evidence proving Plaintiff's innocence, yet he remained incarcerated until October 7, 2016, and the case was not fully dismissed until February 28, 2017.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.
25. The officers who arrested the Plaintiff, as described in paragraphs 9-23, intended to confine him. The Plaintiff was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

26. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.
27. In arresting Plaintiff as described in paragraphs 9-23, the arresting NYPD officers were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
28. In arresting Plaintiff as described in paragraphs 9-23, the arresting NYPD officers sought either a detriment to Plaintiff or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
29. As a result of defendants' abuse of process, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.
31. In arresting Plaintiff as described in paragraphs 9-23, the arresting NYPD officers acted with malice and without probable cause.
32. As a result of being maliciously prosecuted by the arresting NYPD officers, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.

34. Upon information and belief, the officers who illegally arrested Plaintiff were at all times relevant duly appointed and acting officers of the City of New York Police Department.
35. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
36. Plaintiff is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
37. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
38. On or about November 22, 2007, as described in paragraphs 9-23, armed officers of the NYPD, while effectuating the seizure of the Plaintiff, searched, seized, assaulted, and battered Plaintiff, and grabbed the Plaintiff's person, without a court authorized arrest or search warrant. The Plaintiff was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.
39. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:
- (a) Freedom from illegal search and seizure,
 - (b) Freedom from false arrest
 - (c) Freedom from malicious prosecution

40. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
41. The direct and proximate result of the officers' acts are that the Plaintiff has suffered severe and permanent physical and psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

SIXTH CAUSE OF ACTION: NEGLIGENCE

42. Paragraphs 1-41 are incorporated by reference as though fully set forth herein.
43. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
44. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

45. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.
46. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such

as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.

47. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause.

48. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:

(a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.

(b) Force cannot be used against an individual who does not physically resist arrest.

(c) An individual who sustains physical injury at the hands of the police should receive prompt medical attention.

49. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

EIGHTH CAUSE OF ACTION: NEGLIGENT HIRING

50. Paragraphs 1-49 are incorporated by reference as though fully set forth herein.

51. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent

employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals or conduct illegal searches.

WHEREFORE, Plaintiff TREVOR CARPENTER demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

March 15, 2018

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY 10168
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

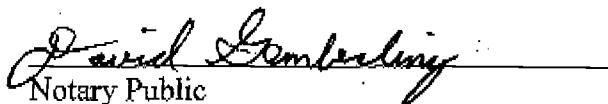
The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

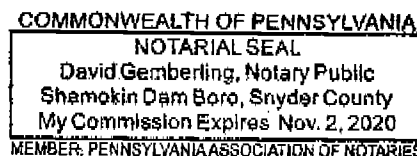
Dated: New York, New York
March 15, 2018


TREVOR CARPENTER



Subscribed and sworn to before me, this 28th day of March 2018


Notary Public



SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF THE BRONX

Index No:

TREVOR CARPENTER,

Plaintiff,

-against-

**THE CITY OF NEW YORK
DETECTIVE ANTHONY VELEZ
(SHIELD #005584)**

Defendant.

SUMMONS & COMPLAINT

**Martindale & Associates, PLLC
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**TO: CORPORATION COUNSEL OF THE
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